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vi) Time and place of Performance of Promise

It is only the promisee for whom the contract is performed. Only the promisee can demand the performance of the promise under a contract.

For Example: X promises Y to pay Z ₹ 10,000/-. X does not pay the sum to Z. Here Z cannot bind X for the payment. It is only promisee Y who can enforce the promise against the promisor X.

Of course, there are certain special cases, where a third party can enforce a promise though he is not a party to the contract For example in respect of trust, marriage settlement etc. In case of death of promisee, the representative appointed by him can ask for the performance of the promise under a contract.

Legal provisions regarding the time, place and manner of performance of a contract

Various legal provisions are laid down under Section 46 to 50 regarding the time, place and manner of performance of a contract. So, as far as the time, place and manner of performance of a contract are concerned it must be agreed upon by the parties to the contract themselves. The legal provisions regarding these are given below –

1. Under Section 46, performance within a reasonable time:

   According to Section 46, a promisor is to perform his promise within a reasonable time. On the other hand, reasonable time will depend upon the circumstance of the case, the usage of trade or on the intention of the parties entering into the contract.

Example: A has given an order of supply of books in July which should be performed within 4 to 5 days of the month of July.

2. Under Section 47, specified time and place for performance:

   If the promise is to be performed on a certain day, the promisor may undertake to perform it without application of the promisee. According to the Section 47, In such a case the promisor may perform the promise at any time during the usual hours of business on such day and at the place at which the promise ought to be performed.

3. Under Section 48, performance on a certain day:

   If the promise is to be performed on a certain day the promisor may undertake to perform it after the application by the promisee to that effect.

4. Under Section 49, performance of promise when no place is fixed and without application:

   If the promise is to be performed without application by the promisee and where no place is mentioned to be performed of the contract then it is the duty of the promisor to apply to the promisee to provide a reasonable place for the performance of the promise and to perform it at such place.

For Example: M takes to deliver 1,000 kilos of wheat to N on a fixed day. M must apply to appoint a reasonable place for the purpose of receiving it and must deliver it to him at such place.